

M/S Jai Jagdamba Metalloys Ltd. v. Madhyanchal Vidut Vitran Nigam Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 29 August 2023 · 2023:AHC-LKO:57882-DB · WRIT - C No. 7457 of 2023 · **Writ consigned with liberty to apply under clause 6.14**

HEADNOTE

A writ seeking fixation of instalments on an electricity bill dated 19.8.2023 was consigned to record with liberty to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005, the licensee having stated that the Executive Engineer has power to consider that grievance.

FACTUAL SUMMARY

M/S Jai Jagdamba Metalloys Ltd., through its director Om Prakash, petitioned the Lucknow Bench of the Allahabad High Court against Madhyanchal Vidut Vitran Nigam Ltd. and another. The company asked the Court to fix instalments on its electricity bill dated 19 August 2023. At the hearing, counsel for the licensee objected that the consumer could apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. A Division Bench heard the petition on 29 August 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments on an electricity bill

HOLDING

On the licensee's preliminary objection, the writ seeking fixation of instalments on the electricity bill dated 19.8.2023 was consigned to record with liberty to move an application under clause 6.14 of the U.P. Electricity Supply Code, 2005, counsel having stated that the Executive Engineer has sufficient power under that clause to consider the grievance. ¶ 2-4

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated a request to fix instalments on the bill dated 19.8.2023 as a grievance the consumer may place before the Executive Engineer by an application under clause 6.14, and consigned the writ with liberty to so apply. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS SHOULD BE FIXED ON THE BILL DATED 19.8.2023, AND ON WHAT TERMS

Left to an application under clause 6.14 before the Executive Engineer. ¶ 3-4